

newsletter a un numero elevato di destinatari”;
“non vi è stata alcuna diffusione di dati sensibili o particolari, essendo stati trattati solo dati anagrafici e di contatto”;

“la comunicazione è stata inviata a pazienti già inseriti nel proprio database e non a soggetti estranei”;

“il messaggio è stato inviato in un contesto di relazione professionale già esistente tra il medico e i pazienti”;

“non vi è stata alcuna richiesta di consenso specifico per l'invio della comunicazione, in quanto ritenuta parte della normale attività di informazione ai pazienti”.

3. Le valutazioni del Garante.

Il Garante, esaminati gli atti e le memorie presentate, ha ritenuto di dover procedere all'adozione di un provvedimento di ingiunzione ai sensi dell'art. 166, comma 5, del Codice, in quanto il trattamento dei dati personali effettuato dal dott. Thomas Fero non risulta conforme ai principi di protezione dei dati personali stabiliti dal Regolamento.

In particolare, il Garante ha rilevato che:

- il trattamento dei dati è avvenuto senza il consenso esplicito dei destinatari, come richiesto dall'art. 6 del Regolamento;
- non è stata fornita alcuna informativa adeguata ai destinatari in merito all'utilizzo dei loro dati personali per finalità di comunicazione politica;
- la comunicazione è stata inviata a un numero elevato di destinatari senza alcuna verifica dell'identità degli stessi, il che ha comportato un rischio per la riservatezza dei dati.

Pertanto, il Garante ha ordinato al dott. Thomas Fero di cessare immediatamente il trattamento dei dati personali dei pazienti per finalità di comunicazione politica e di adottare misure adeguate per garantire la conformità alle disposizioni del Regolamento.

Il presente provvedimento sarà pubblicato sul sito istituzionale del Garante per la protezione dei dati personali.

IL GARANTE PER LA PROTEZIONE DEI DATI PERSONALI

F.to: Pasquale Stanzione

newsletter through a study account with email addresses pseudo-anonymized for knowledge visible to the recipients, also considering the limited knowledge of the subject given the profession exercised."

"The Order of Physicians has never provided any training course reserved for the methods of processing personal data of patients according to the provisions of the GDPR";

"Among the purposes of processing reported in the information provided to the patients of the Studio, it reads: Promotional activities, Information via telematics, Newsletter";

in consideration of what has been learned based on the aforementioned request for access to the

documents of the file

"No patient of Dr. Fero's Studio has ever complained about any violation regarding the processing of their personal data."

3. The outcome of the investigation.

Taking note of what is represented in the documentation on file and in the defensive memoranda, it is observed that:

pursuant to the Regulation, "personal data" means "any information relating to an identified or identifiable natural person ('data subject')"; "data concerning health" refers to data related to the physical or mental health of a natural person, including the provision of health care services, which reveal information about their health status (art. 4, par. 1, points 1 and 15). Recital no. 35 of the Regulation further specifies that health data "includes information about the natural person collected during their registration to receive health care services"; "a number, symbol, or specific element assigned to a natural person to uniquely identify them for health purposes";

the Court of Cassation has deemed that "the very fact of communicating the need for health care and, therefore, the existence of a 'disease' in a broad sense – understood as a situation that makes health care necessary – pertains to health data: it is not necessary, for this purpose, to specify what treatment or what disease is involved" (Sent. no. 28417/2023);

finally, with reference to the concept of health data, the CJEU has also considered that "the information entered by customers (such as their name, delivery address, and elements necessary for identifying the medicines) at the time of the online order of medicines reserved for pharmacies constitutes health data under the GDPR, even if the sale of these is not subject to medical prescription. In fact, such data is capable of revealing, through an intellectual operation of comparison or deduction, information about the health status of an identified or identifiable natural person, because a link is established between the latter and a medicine, its therapeutic indications or uses, regardless of whether such information concerns the customer or any other person for whom the latter places the order. Therefore, it is indifferent that, in the absence of a medical prescription, it is only with a certain probability, and not with absolute certainty, that such medicines are intended for the customers who ordered them" (cf. press release of the Court of Justice of the European Union no. 159/24, concerning the judgment of October 4, 2024, in case C-21/23);

the email addresses of patients must qualify as personal data, and in particular, health data as they are a contact detail of a directly or indirectly identifiable patient (cf., on the traceability of the email address to the notion of personal data, see, among others, the measures of the Guarantor of January 9, 2020, no. 1, web doc no. 9261234, of May 13, 2021, no. 206, web doc no. 9688020, of September 16, 2021, no. 328, web doc no. 9722297, of April 28, 2022, no. 164, web doc no. 9779057, of July 7, 2022, no. 242, web doc no. 9809998, of January 11, 2023, no. 7, web doc no. 9861356, of July 18, 2023, no. 316, web doc no. 9935484, of May 23, 2024, no. 306, web doc no. 10037439);

personal data must be "processed lawfully, fairly, and transparently" and "collected for specified, explicit, and legitimate purposes, and subsequently processed in a manner that is not incompatible with those purposes" (principles of "lawfulness, fairness, and transparency" and "purpose limitation," art. 5, par. 1, lett. a) and b) of the Regulation);

the Guarantor has long outlined a precise framework of guarantees and obligations that parties, political bodies, supporters of lists, and candidates must observe to collect and use correctly the personal data of citizens they intend to contact for communication and electoral propaganda purposes (cf. most recently the provision of April 18, 2019, web doc no. 9105201). In this provision, it was specifically recalled that personal data collected in the context of health protection activities by health professionals and health organizations cannot be used for electoral propaganda and related political communication purposes. Such purpose is not indeed attributable to the legitimate purposes for which the data were collected (art. 5, par. 1, letters a) and b) of the Regulation), unless the data controller obtains specific and informed consent from the data subject (art. 9, par. 1, lett. a); cf. regarding the health sector the provision of March 7, 2019, web doc no. 9091942, in particular, par. 1, point d);

Dr. Fero, as represented above, has deemed that the legal basis for the processing of the data in question is to be found in the consent of the data subject given based on the information provided in the documents. In this regard, it is highlighted that the consents obtained to

In light of the aforementioned information, the email addresses of patients cannot constitute a suitable legal basis for the lawful use of such addresses by Dr. Fero for electoral propaganda purposes, as this purpose is not expressly indicated in the aforementioned information nor in any of the multiple consent provisions therein. As referenced in the aforementioned provisions, in fact, the processing of personal data for electoral propaganda and related political communication could only be carried out by Dr. Fero, as the data controller, if he had obtained specific and informed consent from all 500 patients to whom the aforementioned email was sent; consent that, as stated above, cannot be traced back to those indicated in the documents (art. 9, par. 1, lett. a) of the Regulation; see regarding the healthcare sector the provision of March 7, 2019, doc. web n. 9091942, in particular, par. 1, point d)). It is noted that in the documentation on record, Dr. Fero himself highlights that the email addresses of the patients were provided by them for the purpose of "requesting information or medical assistance" and therefore not also for electoral propaganda purposes; in particular, it is stated that the consent obtained by Dr. Fero for the activities indicated in the information, related to: "Promotional activities, Information via electronic means, Newsletter," cannot be considered valid; this is because the electoral propaganda activity carried out by Dr. Fero, aimed at gaining the trust of voters and convincing them to grant him their vote in the municipal elections of Sanremo in 2024, cannot be equated, as instead claimed by Dr. Fero himself, to the sending of a Newsletter; in fact, the latter activity refers exclusively to a systematic communication sent to subscribers of the service to update them on news in a specific sector. Moreover, pursuant to the Medical Deontological Code, "The informative advertising of the physician" can only have "as its object exclusively professional titles and specializations, professional activity, characteristics of the service offered, and the fees related to the services" (art. 56 of the Medical Deontological Code of 2014, last updated in 2017); personal data must be "processed in a manner that ensures adequate security (...), including protection, through appropriate technical and organizational measures, against unauthorized or unlawful processing and against accidental loss, destruction, or damage ('integrity and confidentiality')" (art. 5, par. 1, lett. f) of the Regulation); the sending of a communication via a single email message addressed to a multiple number of recipients (500), whose addresses were entered in the carbon copy (cc) field (instead of in the field called "blind carbon copy" (bcc)), has, in fact, without justified reason and in the absence of any regulatory prerequisites, revealed to the involved recipients the status of patient of the other recipients; with specific reference to the circumstance that Dr. Fero complains in the documents of "the lack of knowledge of the subject given the profession exercised" and that "The Medical Association has never provided any training course reserved for the methods of processing personal data of patients according to the provisions of the GDPR," it is highlighted that this aspect does not constitute an exemption, as Dr. Fero, as the data controller and in relation to the exercise of his medical activity, is required to know and comply with the applicable rules for the processing of personal data, as well as their interpretation; this, moreover, considering that the principles related to the violated provisions have been in force since 1998 and that the Authority has intervened on the subject with many provisions since 2001 (see ex multis the Decalogue for the use of data by political parties and movements in electoral propaganda of March 7, 2001, doc. web n. 663323 and the Electoral Decalogue of February 12, 2004, doc. web n. 634369); the Regulation, in regulating the parameters of lawfulness of the processing carried out by the healthcare professional, refers to professional secrecy and compliance with sector regulations established by the competent health authorities, among which the Medical Deontological Code can be included (art. 9, par. 2, lett. h) and par. 3 of the regulation and art. 75 of the Code). The aforementioned Medical Deontological Code, in addition to what is indicated above, provides that "In no case may the physician abuse his professional status" and that "the physician must avoid any condition of conflict of interest in which professional behavior is subordinated to undue economic or other advantages" (arts. 7 and 30 of the Medical Deontological Code of 2014, last updated in 2017). In this regard, the possibility of electoral advantage for Dr. Fero in addressing his patients in light of the fiduciary relationship established in the course of care is highlighted.

4. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to art. 58, par. 2, Regulation.

In light of all that has been observed, the Authority believes that the statements, documentation, and

reconstructions provided by the data controller during the investigation do not allow for overcoming the objections notified by the Office with the initiation of the procedure and that they are therefore unsuitable to order the archiving of the present procedure, as none of the cases provided for by art. 11 of the Regulation of the Guarantor n. 1/2019 apply.

The processing of personal data carried out by Dr. Fero is indeed unlawful, as stated above, since it was conducted in violation of the principles of "lawfulness, fairness, and transparency," "purpose limitation," and "integrity and confidentiality" (Article 5, paragraph 1, letters a), b), and f) of the Regulation) and in the absence of an appropriate legal basis (Article 9 of the Regulation).

It is finally believed that the conditions referred to in Article 17 of the Garante Regulation No. 1/2019 are met.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i), and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The violation of Articles 5, paragraph 1, letters a), b), and f) and 9 of the Regulation entails the application of the administrative sanction provided for by Article 83, paragraph 5 of the Regulation.

The Garante, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative pecuniary sanction as provided for by Article 83 of the Regulation, through the adoption of an injunction order (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data carried out by Dr. Thomas Fero, which has been found to be unlawful, as stated above.

It is considered necessary to apply paragraph 3 of Article 83 of the Regulation, which states that "if, in relation to the same processing or related processing, a data controller [...] violates, with intent or negligence, various provisions of this Regulation, the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation," the total amount of the sanction is calculated so as not to exceed the maximum penalty provided for by the same Article 83, paragraph 5.

In light of the above and, in particular, of the category of personal data involved in the violation, which, by their nature, are particularly sensitive in terms of fundamental rights and freedoms, and the number of affected individuals (500 patients) whose data were processed without obtaining their consent for electoral purposes by the doctor to whom they had entrusted themselves for care purposes, it is believed that the level of severity of the violation committed by Dr. Fero is high (cf. European Data Protection Board, "Guidelines 04/2022 on the calculation of administrative fines under the GDPR" of May 23, 2023, point 60).

With reference to the elements listed in Article 83, paragraph 2 of the Regulation for the application of the administrative pecuniary sanction and its quantification, considering that the sanction must be "effective, proportionate, and dissuasive in each individual case" (Article 83, paragraph 1 of the Regulation), it is represented that, in the case at hand, the following circumstances have been taken into account:

- Dr. Fero processed the personal data of numerous patients (about 500) - acquired within the fiduciary relationship aimed at providing care - for personal gain related to his candidacy in the 2024 municipal elections of Sanremo (Article 83, paragraph 2, letter k) of the Regulation);
- The Garante became aware of the violation through a report and some press articles (Article 83, paragraph 2, letters b) and h) of the Regulation);
- Dr. Fero is not the subject of previous prescriptive or sanctioning measures by the Authority and has cooperated during the investigative activity in which he was involved (Article 83, paragraph 2, letters e) and f) of the Regulation).

It is also believed that the circumstances mentioned are relevant in this case, due to the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the sanction (Article 83, paragraph 1 of the Regulation),

considering that Dr. Fero practices as a general practitioner in the Municipality of Sanremo where the aforementioned electoral consultations took place.

In light of the above elements and the assessments made, it is deemed appropriate, in this case, to apply to Dr. Thomas Fero the administrative sanction of payment of an amount equal to €10,000.00 (ten thousand/00).

In this context, it is also believed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this section containing the injunction order on the Garante's website should be carried out.

This is in consideration of the seriousness of the contested conduct that involves the regulation on the protection of personal data and the ethical obligations that constitute the legality parameter of processing pursuant to Article 9, paragraph 2, letter h) and paragraph 3 of the Regulation and Article 75 of the Code. For the same reasons, it is deemed appropriate to transmit this provision to the Order of Surgeons and Dentists of Imperia to which Dr. Fero is registered.

ALL OF THE ABOVE HAVING BEEN STATED, THE Garante

a) pursuant to Articles 57, paragraph 1, letter f) and 83 of the Regulation, notes the unlawfulness of the processing carried out by Dr. Thomas Fero, tax code XX, registered with the Order of Surgeons and Dentists of Imperia, residing in XX, XX in the terms stated in the motivation, for the violation of Article 5, paragraph 1, letters a), b), and f) and Article 9 of the Regulation;

ORDERS

b) pursuant to Article 58, paragraph 2, letter i) of the Regulation, Dr. Thomas Fero to pay the sum of €10,000.00 (ten thousand/00) as an administrative pecuniary sanction for the indicated violations. in the present provision.

ORDERS

c) therefore, Dr. Thomas Fero is ordered to pay the aforementioned sum of €10,000.00 (ten thousand/00), according to the methods indicated in the attachment, within thirty days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981. It is noted that pursuant to Article 166, paragraph 8 of the Code, the violator retains the right to settle the dispute by paying - always according to the methods indicated in the attachment - an amount equal to half of the imposed sanction within the term referred to in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, provided for the submission of the appeal as indicated below.

PROVIDES

d) pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019, the publication of the injunction order on the Guarantor's website;

e) pursuant to Article 154-bis, paragraph 3 of the Code and Article 37 of the Regulation of the Guarantor No. 1/2019, the publication of this provision on the website of the Authority;

f) pursuant to Article 17 of the Regulation of the Guarantor No. 1/2019, the annotation of the violations and the measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for by Article 57, paragraph 1, letter u) of the Regulation;

g) the sending of this provision to the Order of Surgeons and Dentists of Imperia for the relevant assessments.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be filed with the ordinary judicial authority, with an application submitted to the ordinary court of the place identified in the same Article 10, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, February 13, 2025

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE DEPUTY SECRETARY GENERAL
Filippi